Fort Bend County District Court

Cause No. 2024-CV-0022

Karen Gonzalez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	3-22-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and asserts that Plaintiff must prove every element of each claim by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence made the basis of this suit. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving into it, and failed to yield the right-of-way as required by law. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33 and requests that the trier of fact determine the percentage of responsibility of each claimant, defendant, and settling person.

Third, Plaintiff's damages, if any, were caused in whole or in part by a sudden emergency or by the acts or omissions of persons other than Defendant, and Defendant is entitled to a credit or offset for any settlement amounts paid to Plaintiff.